SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 03/02/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09

Meeting ID: 161 108 5023
Passcode: 869677

**Law & Motion**

**1. 9:00 AM CASE NUMBER: C23-00636**
**CASE NAME: LVNV FUNDING LLC VS. MARK WALKER**
**HEARING IN RE: JOINDER TO MOTION TO TRANSFER AND CONSOLIDATE RELATED ACTIONS**
**FILED BY: MANDARICH LAW GROUP, LLP**
***TENTATIVE RULING:****

See LINE 2 below.

**2. 9:00 AM CASE NUMBER: C23-00636**
**CASE NAME: LVNV FUNDING LLC VS. MARK WALKER**

***HEARING ON MOTION IN RE: TRANSFER AND CONSOLIDATE RELATED ACTIONS**
**FILED BY: WALKER, MARK T**
****TENTATIVE RULING:****

Defendant and Cross-Complainant Mark T. Walker ("Defendant") filed a Motion to Transfer and Consolidate Related Actions on October 17, 2025 (the "Motion to Transfer and Consolidate"). The Motion to Transfer and Consolidate was set for hearing on March 2, 2026. The motion is not opposed.

Background

Plaintiff LVNV Funding LLC ("Plaintiff") filed the Complaint against Defendant on March 22, 2023. The Complaint pleads causes of action for account stated and open book account for Defendant's alleged breach of a credit card agreement with Plaintiff's assignor, Navy Federal Credit Union ("NFCU"), in the amount of $26,159.25. A Cross-Complaint was filed by Defendant on May 2, 2023.

Defendant's Motion to Transfer and Consolidate seeks to transfer and consolidate two cases with this pending litigation: (1) *LVNV Funding, LLC v. Derrick*, *et al*., Kings County Case No. 23CL0860; and (2) *LVNV Funding, LLC v. Moya*, *et al*., San Mateo County Case No. 23-CLJ-02782 (collectively, the "Out of County Cases").

The Motion to Transfer and Consolidate was joined by Cross-Defendants Mandarich Law Group, LLP, Teona Pipia and Martin Weingarten (the "Joinder").

It should be note that the Court considered and denied approving a stipulation by the parties to consolidate the following cases:

a. LVNV Funding, LLC v. Walker, *et al.*, Contra Costa Case No. C23-00636;

b. LVNV Funding, LLC v. Derrick, *et al.*, Kings Case No. 23CL0860; and

c. LVNV Funding, LLC v. Moya, *et al.*, San Mateo Case No. 23-CLJ-02782.

See Stipulation and Joint Request to Transfer and Consolidate Cases and Order thereon filed August 20, 2025.

The Court GRANTS the request to take judicial notice of certain attached pleadings in this and the Out of County Cases pursuant to the Request for Judicial Notice filed October 17, 2025 (the "RJN"). In all other respects, the RJN is DENIED, including as to the request to take judicial notice of "the entire Court file" in both of the Out of County Cases.

Analysis

Generally, the Superior Court in the county in which the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action, except as otherwise provided by law and subject to the Court's statutory authority to transfer actions. Code Civ. Proc. § 395(a); see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 9.5.

Under Code of Civil Procedure section 403, "[a] judge may, on motion, transfer an action or actions from another court to that judge's court for coordination with an action involving a common question of fact or law within the meaning of Section 404. Code Civ. Proc. § 403.

Defendant seeks an order to transfer venue of the two Out of County Cases to the Contra Costa County Superior Court.

First, Defendant's motion is procedurally defective. Defendant has not shown compliance with Rule 3.500 of the California Rules of Court ("CRC") that requires a meet and confer process involving all parties to all of the affected cases:

> A party that intends to file a motion under Code of Civil Procedure section 403 must first make a good-faith effort to obtain agreement of all parties to each case to the proposed transfer and consolidation.

CRC 3.500(b).

The moving party's supporting declaration fails to indicate that such meet and confer has happened with all parties involved in the Out of County Cases. See Declaration of Matthew C. Salmonsen ("Salmonsen Decl."), ¶¶1-9. Although the moving party's brief cites to Paragraph 4 of this declaration in support of the proposition that "all parties have agreed to the transfers and consolidation" (see MPA, p. 5 and fn. 23 thereto), that paragraph says nothing about contacting **all of the other parties in both of the Out of County Cases**. See Salmonsen Decl., ¶4.

Nor has the moving served such parties with this motion or the other courts. Code Civ. Proc. § 403 ("Notice of the motion shall be served on all parties to each action and on each court in which an action is pending.").

Even if not procedurally defective, the Court would deny the motion. It is clear that that the Out of County Cases involve suits on unrelated debts. That similar defenses (or affirmative claims regarding wrongful conduct by a debt collector or its attorneys) may be raised does not persuade that Court that transfer and consolidation is appropriate. If class action status is sought to redress broader allegations of industry wide improper practices, that is another matter and can be considered by the Court in ruling on class certification or related procedures involving the purported representative action.

<u>Disposition</u>

The Court finds and orders as follows:

1. The Motion to Transfer and Consolidate and Joinder are DENIED.
2. The Court shall issue the order.

**3. 9:00 AM CASE NUMBER: C23-03252**
**CASE NAME: COURTNEY NIELSON VS. DIANA GEORGE**
**HEARING ON SUMMARY MOTION**
**FILED BY: NIELSON, COURTNEY**
***<u>*TENTATIVE RULING:*</u>***

Before the Court is a motion for summary judgment, or adjudication in the alternative, filed by plaintiffs Courtney Nielson and Nicholas Bunch. The motion is **DENIED** on both procedural and substantive grounds, as discussed below. Even assuming plaintiffs had met their initial burden to show entitlement to judgment as a matter of law, defendants have shown triable issues of material fact.

**I. Background**

Plaintiffs filed suit against defendants, DG Design Group Builders, Inc.; Diana George; Donald

E. Murphy; American Contractors Indemnity Company in December of 2023. They seek damages related to allegedly defective construction work by DG Design Group Builders, Inc. and Diana George, and for damages related to the "predatory business practices" (illegally collecting advance payments prior to performance) of these same defendants. (Complaint, 1:24-2:2.) These defendants (DG Design Group Builders, Inc. and Diana George) worked at plaintiffs' property pursuant to a written agreement for the purpose of renovating plaintiffs' home. Plaintiffs also allege defendant Murphy fraudulently acted as the "Responsible Managing Officer" ("RMO") of DG Design Group. Finally, plaintiffs have named American Contractors Indemnity Company as the bond company of DG Design Group in order to recover DG Design Group Builders' contractor's bond. (Complaint, 2:4-2:9.)

The complaint sets forth seven causes of action for (1) Breach of Contract, (2) Breach of Home Improvement Contract, Business and Professions Code § 7159, (3) Recovery Against Unlicensed Contractor, Business and Professions Code § 7031(b), (4) Negligence, (5) Fraud, (6) Violation of Business and Professions Code § 7160, and (7) Claim on License Bond.

## II. Motion and Opposition

Plaintiffs move for summary judgment or, in the alternative, summary adjudication. The notice of motion describes the issue for summary adjudication as follows: "Defendant DG Design Group Builders, Inc. was an unlicensed contractor because the responsible managing officer, under which Defendant DG Design Group Builders, Inc. was licensed did not meet the minimum requirements set forth in Bus. & Prof. Code §7068. Therefore, Defendant DG Design Group Builders, Inc. must disgorge all compensation received from Plaintiffs. In addition, Plaintiffs are entitled full amount of the contractor's license bond, issued by Defendant American Contractor's Indemnity Company ("ACIC"), as well as an award of attorney's fees and costs, pursuant to CCP §1029.8."

In support of their motion, plaintiffs provide the SSUMF, a declaration from Nicholas Bunch, a request for judicial notice, and a declaration from counsel which attaches various discovery documents including deposition transcript excerpts, responses to requests for production, and the construction schedule.

Defendants oppose the motion. They submit declarations from both George and Murphy. They also submit a declaration from their attorney which attaches deposition testimony by plaintiff Nicholas Bunch. Defendants respond to the SSUMF, provide additional material facts, and object to the evidence provided by plaintiffs.

In reply, plaintiffs provide a declaration from another attorney, object to defendants' opposition evidence, and respond to defendants' additional material facts.

## III. Evidentiary Matters

The request for judicial notice is **DENIED**. To the extent the matters sought to be noticed are not hearsay, their relevance is questionable.

The defendants' objections in opposition to the motion, as well as the objections by plaintiffs on reply, are **OVERRULED**.

## IV. Standard

For purposes of both motions for summary judgment and motions for summary adjudication, a plaintiff's burden consists of showing that there is no defense to a cause of action, and the plaintiff meets this burden by proving each element of the cause of action. (Code Civ. Proc., § 437c (p)(1); see also *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 239-240.) Only where plaintiff satisfies this initial burden does the burden shift to the defendant to showing a triable issue of material fact exists as the cause of action or a defense thereto. (Code Civ. Proc., § 437c (p)(1).) In ruling on the motion, the Court must view all of the evidence and inferences reasonably drawn therefrom in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

A party may move for summary adjudication as to one or more causes of action within an action, which may only be granted where it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c (f)(1).) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

**V. Discussion**

**A. Procedural Grounds for Denial**

Plaintiffs purport to be requesting summary adjudication, but the Court notes that no causes of action are specifically identified in the notice of motion or in the SSUMF. While the reply brief attempts to dismiss this concern as one of "formatting," the failure to comply with the rules deprives both the Court and defendants of insight into what facts plaintiffs contend are necessary for each cause of action. Because "[s]ummary judgment is a device for narrowing issues for trial, not a trap for an unwary opponent," entertaining a motion for summary adjudication as to any particular cause of action here would be improper. (*Homestead Sav. v. Superior Court* (1986) 179 Cal.App.3d 494, 498; see also Cal. Rules of Court, rule 3.1350(b).)

While the Court could look past the above issue if it were to construe the instant motion as solely for summary judgment, such a motion could not be granted. Plaintiffs have not shown they are entitled to judgment on all seven causes of action, some of which are not mentioned in the moving papers at all. Even assuming summary adjudication could be properly entertained on the papers here, plaintiffs fail to meet their initial burden or, if they do, defendants successfully show material disputes of fact.

**B. Substantive Grounds for Denial**

Plaintiffs contend DG Design Group Builders, Inc. was unlicensed due to the lack of qualifications by defendant Murphy, its responsible managing officer.

The Contractors' State License Law (CSLL), section 7000 et seq., is a comprehensive legislative scheme governing the construction business in California. The CSLL provides that contractors performing construction work must be licensed unless exempt. (*White v. Cridlebaugh* (2009) 178 Cal.App.4th 506, 517, citing Bus. & Prof. Code, §§ 7026 et seq., 7040 et seq.) "The licensing requirements provide minimal assurance that all persons offering such services in California have the requisite skill and character, understand applicable local laws and codes, and know the rudiments of administering a contracting business." (*Id.*, quoting *Hydrotech Systems, Ltd. v. Oasis Waterpark* (1991) 52 Cal.3d 988, 995.) The licensing requirement and the penalties for violating that requirement are designed to protect the public from incompetent or dishonest providers of building and construction services. (*Ibid*.)

When a corporation, such as DG Design Group Builders, Inc., applies for a contractor's license, it must qualify through either a "responsible managing officer" (RMO) or "responsible managing employee" (RME), who is, himself or herself, eligible for the same license qualification. (Bus. & Prof.

Code, § 7068, subd. (b)(3).) The "qualifier" RMO or RME must be a bona fide officer or employee of the corporation and actively engaged in work encompassed by the license. (Bus. & Prof. Code, § 7068, subd. (c).)

Here, it is the position of defendants that Murphy was the RMO for DG Design Group Builders, Inc. Murphy has his own license number and the company has a separate license number. Murphy replaced the former RMO in 2022. Plaintiffs assert that Murphy would only "walk the job" and had no other responsibilities when he would visit. Though "walk to job" is not entirely clear, plaintiffs also contend he only spent ten to twenty minutes there when he would visit, and this was only every couple of weeks. (See SSUMF Fact Nos. 11-12.) Plaintiffs outline various tasks that Murphy did *not* perform. (SSUMF, Fact Nos. 11-16.)

The list of tasks plaintiffs contend Murphy did not perform does not necessarily preclude compliance with the statutory scheme. Most importantly, plaintiffs do not rule out that Murphy was exercising "direct supervision or control" as required by Business and Professions Code, § 7068.1 (a), by "monitoring and being available to assist others to whom direct supervision and control has been delegated." (Bus. & Prof. Code, § 7068.1 (c)(3).)

Plaintiffs fail to meet their initial burden. The additional facts highlight this issue by including statements that "Murphy and George discuss projects weekly" and Murphy "monitors the projects and work" and "makes himself available to assist others within the company who directly supervise and control the company's operations […]." (Additional Material Fact Nos. 37-38.)

While plaintiffs' reply attempts to dismiss these statements in defendants' declarations as "sham declarations" that contradict their depo testimony, the Court does not agree that there is complete contradiction. Plaintiffs' own evidence shows Murphy testified he "would go look at jobs, make sure things are okay." (Declaration of Ani N. Keledjian, Ex. B, 12:21-22.) This is consistent with the "monitoring" mentioned in Business and Professions Code, § 7068.1 (c)(3). Further, the fact that Murphy was never "consulted about any problems" (see Declaration of Ani N. Keledjian, Ex. B, 32:2-15) does not equate to him having not "being available" as mentioned in Business and Professions Code, § 7068.1 (c)(3).

Even assuming the procedural concerns with summary adjudication could be overcome, and that the moving papers shifted the burden to defendants, there are triable issues precluding summary judgment. (See, e.g., Additional Fact Nos. 37-38.)

Accordingly, the motion must be DENIED.

**4. 9:00 AM CASE NUMBER: C24-00464**
**CASE NAME: WILMINGTON SAVINGS FUND SOCIETY, FSB, ETC. VS. LANE JENKINS**
**HEARING ON SUMMARY MOTION**
**FILED BY:**
***TENTATIVE RULING:****

Before the Court is a motion by Wilmington Savings Fund Society, FSB, not in its individual capacity but solely as owner trustee on behalf of Antlr Mortgage Trust 2021-RTL 1 for summary judgment. For the reasons set forth, the motion is **DENIED, without prejudice**.

The motion for summary judgment is filed by the entity "Wilmington Savings Fund Society, FSB, not in its individual capacity but solely as owner trustee on behalf of Antlr Mortgage Trust 2021-RTL 1," which was the named plaintiff when the complaint initiating the action was filed. On November 20, 2024, the Court filed an order on the parties' "Stipulation for Substituting Real Parties in Interest Finance of America LLC and Wilmington Savings Fund Society, FSB as Trustee for Antlr Mortgage Trust 2024-RTL1 as Plaintiffs." (11/20/2024 Plaintiff Substitution Stipulation and Order.) The parties' stipulation states that following the filing of the complaint, the beneficial interest in the $990,000 loan ("Loan 0004") was assigned to Finance of America LLC, and the beneficial interest in the $825,000 loan ("Loan 0001") was assigned to Wilmington Savings Fund Society, FSB as Trustee for Antlr Mortgage Trust 2024-RTL1. (11/20/2024 Plaintiff Substitution Stipulation p. 2, ll. 10-24.)

The order on the November 20, 2024 Plaintiff Substitution Stipulation provides (1) Finance of America LLC and Wilmington Savings Fund Society, FSB as Trustee for Antlr Mortgage Trust 2024-RTL1, identified as the real parties in interest, will be substituted as plaintiffs, and (2) Finance of America LLC and Wilmington Savings Fund Society, FSB as Trustee for Antlr Mortgage Trust 2024-RTL1 are ordered to file a first amended complaint within 10 days of the Court's order. The first amended complaint was required to be filed by December 2, 2024 (November 30, 2024, 10 days following the Court's order was a Saturday).

Finance of America LLC and Wilmington Savings Fund Society, FSB as Trustee for Antlr Mortgage Trust 2024-RTL1 did not file the first amended complaint by the Court-set deadline or thereafter in violation of the order and despite the stipulation that those parties, as the real parties in interest who were assigned the loans subject to the action after the complaint was filed, will be substituted as plaintiffs in the case. Because the motion for summary judgment was not filed by the real parties in interest substituted as plaintiffs under the November 20, 2024 Plaintiff Substitution Stipulation and Order, and because the real parties in interest failed to file the first amended complaint as ordered by the Court, the motion is **DENIED, without prejudice** to refiling when these procedural issues are cured.

**5. 9:00 AM CASE NUMBER: C24-00797**
**CASE NAME: MAHYAR NOORAEI VS. MATTHEW ARVIN**
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT**
**FILED BY: ARVIN, MATTHEW**
***TENTATIVE RULING:***

Before the Court is Defendants Matthew Arvin and Sepideh Matthew, individually and as co-trustees of the Arvin Matthew and Sepideh Matthew Declaration of Trust dated September 19, 2022's Motion to Set Aside Default ("Motion").

Defendants' Motion is **GRANTED**.

**Procedural History**

Plaintiffs filed their complaint on March 25, 2024. Plaintiffs filed Proofs of Service of Summons on August 11, 2025, indicating that both Defendants were personally served on June 17, 2025. As such, any responsive pleading was due on or before July 17, 2025. When no responsive pleadings were filed, Plaintiffs sought and were granted defaults against the Defendants on August 26, 2025.

Defendants filed the instant Motion on October 14, 2025. Plaintiffs oppose the Motion.

**Standard**

Defendants move to set aside the defaults pursuant to Code of Civil Procedure section 473(b). That section "includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*) Defendants rely upon the mandatory relief provision.

"[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect vacate any . . . resulting … dismissal entered against his or her client…." (Code Civ. Proc. § 473, subd. (b).)

Relief under CCP § 473, subdivision (b) does not require Counsel to explain why he made the mistake, nor does it require him to show that the mistake was excusable. (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 439-440 "[T]he text of section 473 subdivision (b) does not require an explanation of reasons as a prerequisite to mandatory relief.") Accordingly, 473(b) "at most demand[s] an attorney's candid, full, and straightforward acknowledgment of his or her error; they do not speak to the reasons for those errors." (*Ibid*.)

**Analysis**

Defense counsel submits a declaration noting that he has been a civil litigator in California for approximately 43 years. (¶ 2.) During that time, he has seen and reviewed "countless" issued summons and complaints. (*Ibid.*) He was contacted by the Defendants, whom he has represented in legal matters for several years, about a new legal matter. (¶¶ 3-4) Defendants provided him with a stack of papers that included the complaint filed in this case and a copy of a summons. (¶ 4.)

Defense counsel reviewed the documents including the summons and opined that there were several apparent defects in the documents which led him to believe it was not an 'issued' summons and that service on the Defendants was improper. (¶¶ 7-8.) He advised the Defendants as such. (¶ 8.) Instead of filing a responsive pleading, based on his mistaken belief that service was improper, he reached out to Plaintiffs' counsel to attempt to work the situation out. (¶¶ 9-10.) Instead of coming to a compromise, Plaintiffs counsel sought and obtained the default against the Defendants. (*Ibid.*)

On its face, the above satisfies the requirements for mandatory relief.

Plaintiffs make several arguments in opposition. The first of which is that the defaults were not in fact caused by defense counsel's mistake, inadvertence, surprise, or neglect. They argue that defense counsel's actions in attempting to meet and confer with Plaintiff's counsel instead of filing an answer was a deliberate tactical decision. This argument ignores, however, Plaintiffs' counsel's obligation to warn opposing counsel that they are going to seek a default and to allow time to cure.

**Obligation to warn of impending default**

"[I]t is now well acknowledged that an attorney has an *ethical* obligation to warn opposing counsel that the attorney is about to take an adversary's default." (*Lasalle,* supra, 36 Cal.App.5th at 135.) In making this finding, the *Lasalle* Court "heartily endorse[d]" the related admonition found in the Rutter Group practice guide, which states:

> "[Practice Pointer:] If you're representing plaintiff and have had *any* contact with a lawyer representing defendant, don't even attempt to get a default entered without first giving such lawyer *written* notice of your intent to request entry of default, and a reasonable time within which defendant's pleadings must be filed to prevent your doing so." (*Ibid.* quoting Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2008) ¶5:71, p. 5-17.) [Note – The 2025 version of the Rutter Guide still contains this Practice Pointer]

Although there were a minority of cases that held that an ethical breach did not mean there was a legal violation, the *Lasalle* court distinguished those cases, finding they did not consider the enactment of Code of Civil Procedure section 583.130 in January 1984. (*Lasalle*, 36 Cal.App.5th at 136-137.) California Code of Civil Procedure section 583.130 states, in relevant part, that it "is the policy of this state that a plaintiff shall proceed with reasonable diligence in prosecution of any action but that ***all parties shall cooperate*** in bringing the action to trial or other disposition." (Code Civ. Proc. § 583.130, emphasis added.) "That is not complicated language… The policy of the state is that the parties to a lawsuit 'shall cooperate.' Period. Full Stop." (*Lasalle*, 36 Cal.App.5th at 130.)

Given the above, the "ethical obligation to warn opposing counsel of an intent to take a default is now reinforced by a statutory policy that all parties 'cooperate in bringing the action to trial or other disposition." (*Id.* at 137.) "Quiet speed and unreasonable deadlines do not qualify as 'cooperation' and cannot be accepted by the courts." (*Ibid*.)

The "obligation to advise opposing counsel of an impending default is part of an attorney's responsibility to the court and the legal profession and takes precedence over the obligation to represent the client effectively." (*Shapell Socal Rental Properties, LLC v. Chico's FAS, Inc.* (2022) 85 Cal.App.5th 198, 213 citing *Lasalle, 3*6 Cal.App.5th at 134, 137.)

Defense counsel's declaration makes clear that he reached out to Plaintiffs' counsel to explain his position before the defaults were taken. (¶¶ 9-10.) It also makes clear that Plaintiffs' counsel never mentioned seeking to take the defaults of the Defendants during those discussions, stating that he "learned, after the fact, of the default." (¶ 10.) Plaintiffs' counsel does not provide a declaration disputing this account of events.

Defense counsel acted in good faith by reaching out to Plaintiffs' counsel to try and discuss the issues related to service that he observed. Instead of acting reasonably and in good faith and coming to an agreement regarding the filing of a responsive pleading, Plaintiffs' counsel surreptitiously sought and obtained Defendants' defaults.

The California Supreme Court has set forth, over the years, the principles to be applied by a court involving motions for relief from default. Perhaps the three most significant are these:

- "[T]he policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary." (*Au-Yang v. Barton* (1999) 21 Cal.4th 958, 963 quoting *Weitz v. Yankosky* (1966) 63 Cal.2d 849, 855.)

- "Because the law favors disposing of cases on their merits, 'any doubt in applying [CCP] section 473 must be resolved in favor of the party seeking relief from default." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980 quoting *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)
- "[V]ery slight evidence will be required to justify a court in setting aside the default." (*Elston, supra*, 38 Cal.3d at 233

Plaintiffs' arguments regarding defense counsel's actions being a deliberate strategic decision that does not amount to a mistake, inadvertence, or neglect are not well taken. Plaintiffs have also failed to show any prejudice by allowing the defaults to be set aside.

**Conclusion**

Based on the above, Defendants' Motion is **GRANTED**. The defaults entered on August 26, 2025, are set aside. Defendants shall file their responsive pleadings within ten (10) days of notice of entry of the Order on this Motion.

**6. 9:00 AM CASE NUMBER: C24-03119**
**CASE NAME: CARL DEXTER VS. NEWREZ LLC**
***HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS**
**FILED BY: NEWREZ LLC**
****TENTATIVE RULING:****

**Introduction**

Before the Court is Defendant NewRez LLC dba Shellpoint Mortgage Servicing's ("Defendant Shellpoint") motion to expunge lis pendens and attorney's fees. The motion is brought under Code of Civil Procedure section 405.32 on the grounds that Plaintiff Carl Dexter, as administrator of The Estate of Gene E. Jeter. Jr. cannot prove the probable validity of his real property claim by a preponderance of the evidence.

For the following reasons, **Defendant's motion is GRANTED, and each party shall bear their own fees and costs.**

**Factual Background**

Gene E. Jeter, Jr. was given a loan for the Property which was secured by a Deed of Trust ("DOT") executed on July 26, 2021. (Foster Decl. at ¶ 3, Exhibit 1.) The DOT is in favor of Mortgage Electronic Registration Systems, Inc., as nominee for Premier Mortgage Resources, LLC (See, Exhibit 1.) Mr. Jeter passed away in June 2022. (Complaint ¶1.)

The beneficial interest in the DOT transferred to NewRez LLC dba Shellpoint Mortgage Servicing ("Defendant"), as memorialized by the Corporate Assignment of Deed of Trust (Foster Decl. at ¶ 4, Exhibit 2.) The loan became delinquent. Defendant substituted Prestige Default Services LLC as the new Trustee, with the Substitution of Trustee recorded on April 12, 2024. (Foster Decl. at ¶ 5, Exhibit 3.) Prestige Default Services, LLC caused a Notice of Default and Election to Sell Under Deed of Trust to be recorded and served formally commencing the non-judicial foreclosure process. (Foster Decl. at ¶ 6, Exhibit 4.) On July 12, 2024, Prestige caused a Notice of Trustee Sale to be recorded, served and published. The sale date was set for August 27, 2024. (Foster Decl. at ¶ 7, Exhibit 5.) The sale date of August 27, 2024, was postponed. The new sale date was October 8, 2024. (Foster Decl. at ¶ 8.)

On October 8, 2024, the Trustee, Prestige Default Services, LLC, conducted the nonjudicial foreclosure sale. Defendant placed the winning credit bid, and the sale was completed, thereby extinguishing any interest Plaintiff may have had in the Property and terminating the right to reinstate or redeem the loan. (Foster Decl. at ¶ 9, Exhibit 7.) The transfer of title was memorialized by the Trustee's Deed Upon Sale (TDUS), which confirmed the sale date and was recorded on November 26, 2024, conveying the Property to Defendant (Foster Decl. at ¶ 9, Exhibit 7). The sale was in the amount of $359,366.48 for the unpaid debt.

On the sale date, October 8, 2024, Plaintiff called and requested a postponement of the foreclosure sale. Plaintiff was told by Defendant Shellpoint that the account could not be discussed because the successor in interest had not been set up yet. (Foster Decl. at ¶ 10, Exhibit 8). On October 14, 2024, Defendant's representative spoke with Plaintiff. Plaintiff stated that he wished to catch up on the loan. Plaintiff was advised this was not possible as the sale had occurred. (Foster Decl. at ¶ 10, Exhibit 8.)

On October 18, 2024, Plaintiff called again and was advised that the sale would not be reversed. On October 21, 2024, Plaintiff spoke with Defendant's representative and argued that the sale should be rescinded because the deed had not yet been recorded. Defendant's representative advised Plaintiff that it does not typically rescind sales without an error. (Foster Decl. at ¶ 11, Exhibit 8.) On October 22, 2024, Plaintiff made two calls, inquiring about reversal. On October 23, 2024, Plaintiff called again.

On October 24, 2024, Plaintiff called to request the reinstatement amount and wiring instructions but was informed by Defendant's representative that the loan could not be reinstated because the home was sold and the funds would be sent back. (Foster Decl. at ¶ 12, Exhibit 8.) On November 4, 2024, Defendant Shellpoint received a wire sent by Plaintiff in the amount of $28,335.72. The funds were sent back to Plaintiff. (Foster Decl. at ¶ 13, Exhibit 8.)

The Court notes that the Complaint, filed on November 19, 2024, alleges that there will be a future controversy since Plaintiff anticipated Defendant Shellpoint to return his October 28, 2024, reinstatement payment. (Complaint ¶ 17.) Indeed, this came to pass, as Plaintiff confirmed that the October 28, 2024, reinstatement payment was returned a mere couple of days after the filing of the Complaint on November 21, 2024. (Oppo at p. 5:17-18.)

**<u>Legal Standard for Expunging Lis Pendens</u>**

The purpose of a lis pendens is "to give constructive notice of an action affecting real property to persons who subsequently acquire an interest in that property, so that the judgment in the action will be binding on such persons even if they acquire their interest before the judgment is actually rendered." (*Bishop Creek Lodge v. Scira* (1996) 46 Cal.App.4th 1721, 1733.) "As a practical matter, the filing of a lis pendens usually clouds the title to the property and prevents its transfer until the litigation is resolved or the lis pendens is expunged." (*Malcolm v. Superior Court of Santa Clara County* (1981) 29 Cal.3d 518, 523, fn. 2.) Under Code Civ. Proc. § 405.30, at any time after a notice of pendency of action has been recorded, any party with an interest in the real property may apply to the Court to expunge the notice.

"The expungement statutes provide that a lis pendens may be expunged on three grounds: (1) 'the pleading on which the notice is based does not contain a real property claim' (Code Civ. Proc., § 405.31); (2) 'the claimant has not established by a preponderance of the evidence the probable validity of the real property claim' (Code Civ. Proc., § 405.32); or (3) 'adequate relief can be secured to the claimant by the giving of an undertaking' (Code Civ. Proc., § 405.33)." (*Carr v. Rosien* (2015) 238 Cal.App.4th 845, 857.) Probable validity is met when the Plaintiff establishes her claim by a preponderance of the evidence. (Code Civ. Proc., § 405.32.)

"Unlike most other motions, when a motion to expunge is brought, the burden is on the party opposing the motion to show the existence of a real property claim." (*Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647 citing Cal. Code Civ. Proc. § 405.30.)

**<u>Analysis</u>**

**Real Property Claim**

As noted above, a "lis pendens may be expunged if the action does not contain a real property claim or the claimant fails to establish the probable validity of the real property claim." (*Newell v. Superior Court* (2024) 107 Cal.App.5th 728, 735; quoting *De Martini v. Superior Court* (2024) 98 Cal.App.5th 1269, 1275.)

"In making [determination as to whether a real property claim is being asserted], the court must engage in a demurrer-like analysis." (*Park 100 Investment Group II, LLC v. Ryan* (2009) 180 Cal.App.4th 795, 808; quoting *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647-48.) "Rather than analyzing whether the pleading states any claim at all, as on a general demurrer, the court must undertake the more limited analysis of whether the pleading states a real property claim. [cite] Review 'involves only a review of the adequacy of the pleading and normally should not involve evidence from either side, other than possibly that which may be judicially notices as on a demurrer. [cite]." (*Id.* at 808-09 internal citations omitted.)

The statute provides no further definition of "affect … title to, or the right to possession of," specific real property, nor has caselaw provided any abstract definition. (*BGJ Associates, LLC v. Superior Court* (1999) 75 Cal.App.4th 952, 967.) Caselaw has determined that certain types of actions clearly do, or clearly do not, affect title or possession. (Id.) At one extreme, a buyer's action for specific performance of a real property purchase and sale agreement is a classic example of an action in which a lis pendens is both appropriate and necessary. (Id.) At the other extreme, an action solely seeking money damages, even if it relates in some way to specific real property, will not support a lis pendens. (Id.) Fraudulent conveyance claims also support a lis pendens. (See Id. at 970.) A declaratory relief claim may also constitute a real property claim that supports a lis pendens. (*Mason v. Superior Court* (1985) 163 Cal.App.3d 989, 999 (superseded on other grounds).)

Although the Complaint does not formally list a cause of action in a heading or otherwise, the Complaint's prayer asks for the determination that Shellpoint accepted the $28,355.72 sent by Dexter on October 28, 2024, that such acceptance constituted a reinstatement of the Deed of Trust, and the determination that Plaintiff is the legal owner of the subject property subject to the Deed of Trust that Shellpoint was the beneficiary to.

The Court is not persuaded by Defendant's interpretation that the action is no longer a claim for title or possession; it is merely a claim about the temporary handling of returned funds. (Motion at p. 6: 6-11.) The Complaint in its prayer for relief asks for determinations of title through declaratory relief. (Complaint at p. 4: 1-7.) Thus, Plaintiff's Complaint contains a real property claim.

**Probable Validity of Prevailing on the Real Property Claim**

Defendant contends that Plaintiff has not established by a preponderance of the evidence the probable validity of the real property claim. (Code Civ. Proc., § 405.32.) The Court agrees.

**Validity of Debt and Foreclosure Sale**

Plaintiff has not disputed the fact that the loan was in default nor asserted that the foreclosure sale was improper. All of Plaintiff's allegations involve wrongful conduct based on a post-sale tender of funds.

**Post Sale Payment Cannot Revive Expired Reinstatement Rights**

Civil Code section 2924c(e), provides that reinstatement rights terminate "five business days prior to the date of sale." After the five business days expire, Plaintiff only has a right to tender of the full past-due amount of indebtedness before the foreclosure sale. (*Crossroads Investors, L.P. v. Federal National Mortgage Assn*. (2017) 13 Cal.App.5th 757, 778; See also *Moeller v. Lien* (1994) 25 Cal.App.4th 822, 831.) Once the trustee's sale is completed, the borrower has no further rights of redemption. (Id.)

On October 8, 2024, the nonjudicial foreclosure sale was conducted. Defendant Shellpoint placed a winning credit bid of $359,366.48, extinguishing Plaintiff's interest and right to reinstate the loan (Foster Decl. ¶ 9, Ex. 7.) Although the Plaintiff requested a postponement on the sale date, Defendant declined to discuss the account with Plaintiff because Plaintiff had not been established as the successor in interest yet. (Foster Decl. ¶ 10, Ex. 8.) Plaintiff did not have his status as successor in interest confirmed by Defendant until the day of the foreclosure sale on October 8, 2024. (Complaint ¶ 13.) At that time, Plaintiff's reinstatement rights had expired which meant Plaintiff's only way to stop the sale would have been to tender the full amount of the underlying debt. (*Crossroads Investors, L.P. v. Federal National Mortgage Assn.* (2017) 13 Cal.App.5th 757, 777-778.)

On November 4, 2024, Plaintiff wired $28,335.72, which Defendant subsequently returned (Foster Decl. ¶ 12.) Plaintiff's attempt to reinstate on November 4, 2024, was too late to exercise reinstatement rights that had already expired under Civil Code Section 2924c.

The fundamental basis of an action for declaratory relief is the existence of an actual, present controversy over the proper subject. (*Otay Land Co. v. Royal Indem. Co* (2008) 169 Cal.App.4th 556, 562.) A request for declaratory relief will not create a cause of action that otherwise does not exist; rather, an actual, present controversy must be pleaded specifically and the facts of the respective claims concerning the underlying subject must be given. (*City of Cotati v. Cashman* (2002) 29 Cal.4th

69, 80.) Further, declaratory relief is not an independent cause of action, but a form of equitable relief. (*Batt v. City and County of San Francisco* (2007) 155 Cal.App.4th 65, 82.) Thus, a dismissal of a claim for declaratory relief is proper where that claim is wholly derivative of other failed causes of action. (*Ball v. FleetBoston Financial Corp.* (2008) 164 Cal.App.4th 794, 800.)

Here, the thrust of Plaintiff's argument is that he paid the reinstatement amount after the Trustee Sale of the subject property had already been conducted. (Complaint ¶ 17.) Defendant Shellpoint has presented statutory and case authority in support of its position that Plaintiff's opportunity to reinstate the subject Deed of Trust had already expired when he wired the funds after the Trustee Sale had been conducted. (Motion at pp. 6-8.) Plaintiff admits that he received his October 28, 2024, $28,355.72 payment back from Defendant Shellpoint on November 21, 2024

Thus, Plaintiff has not made the requisite showing by a preponderance of the evidence the probable validity of his real property claim.

**Attorney's Fees Under CCP 405.38**

"The court shall direct the party prevailing on any motion under this chapter be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." (Code Civ. Proc., § 405.38 (Deering).) "When a lis pendens is withdrawn while a motion to expunge is pending, a moving party is not automatically entitled to attorney fees, nor automatically denied attorney fees, under CCP § 405.38. Instead, based on the practical approach to the award of attorney fees, the trial court has the discretion to award attorney fees based on a determination of which party would have prevailed on the motion, and whether the lis pendens claimant acted with substantial justification in withdrawing the lis pendens, or whether, in light of all of the circumstances, the imposition of fees would otherwise be unjust." (*Castro v. Superior Court* (2004) 116 Cal.App.4th 1010.)

The party subject to sanctions bears the burden to establish it acted with substantial justification or other circumstances make the imposition of the sanction unjust. (See *Doe v. United States Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434.) Substantial justification means clearly reasonable justification that is well grounded in both law and fact. (*Padron v. Watchtower Bible & Tract Society of New York, Inc.* (2017) 16 Cal.App.5th 1246, 1269; citing *Diepenbrock v. Brown* (2012) 208 Cal.App.4th 743, 747.)

Plaintiff wired Defendant the reinstatement amount and Defendant did not return Plaintiff's payment until a couple days after the Complaint was filed. In his Declaration Plaintiff states that he had been communicating with representatives of Defendant Shellpoint since August 19, 2024, and was unable to obtain the reinstatement amount or wiring instructions until October 23, 2024, weeks after the Trustee Sale took place. (Oppo at p. 3: 8-27; Ex. 2.) In sum, Plaintiff made a request for reinstatement before the sale, Defendant did not respond with the information Plaintiff needed to reinstate the loan until after the sale, the subject property was not purchased by a bona fide third-party purchaser since Defendant purchased the property at the sale, and the Trustees Deed Upon Sale has not yet been recorded. Considering that Plaintiff reached out to Defendant over six weeks before the sale and was unable to receive a reinstatement quote and wiring instructions until weeks after the sale took place, and that there was no third party bona fide purchaser since Defendant bought the subject property at the sale, and that the Trustees Deed Upon Sale had not yet been recorded, it was reasonable for Plaintiff to believe his position had substantial support. Both parties are to pay their own attorney's fees.

**Conclusion**

Based on the above, **Defendant's motion is GRANTED, and each party shall bear their own fees and costs.**

**7. 9:00 AM CASE NUMBER: C25-00811**
**CASE NAME: A.V.P. VS. WEST CONTRA COSTA UNIFIED SCHOOL DISTRICT**
**HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT**
**FILED BY: WEST CONTRA COSTA UNIFIED SCHOOL DISTRICT**
***TENTATIVE RULING:***

Withdrawn by moving party.

**8. 9:00 AM CASE NUMBER: C25-01235**
**CASE NAME: CHARLES CAUFFIELD VS. CATHERINE AMOURIS**
**HEARING ON DEMURRER TO: CROSS COMPLAINT OF CATHERINE AMOURIS - CONTINUED FROM 2/2/26**
**FILED BY:**
***TENTATIVE RULING:***

Plaintiff and cross-defendant Charles Cauffield ("Cross-Defendant") brings this demurrer to the Cross-Complaint of defendant and cross-complainant Catherine Amouris ("Cross-Complainant"), asserting that the second (intentional misrepresentation), third (negligent misrepresentation), and fourth (fraud – suppression of fact) causes of action do not state facts sufficient to constitute a cause of action. Specifically, Cross-Defendant argues that Cross-Complainant's fraud-based causes of action are barred by the statute of limitations and are not pleaded with the requisite specificity.

For the reasons discussed below, the Court sustains Cross-Defendant's demurrer to the second (intentional misrepresentation), third (negligent misrepresentation), and fourth (fraud – suppression of fact) causes of action, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; California Rules of Court, Rule 3.1320(g).)

**Meet and Confer**

The meet and confer requirement has been satisfied. (Paymon Hifai Decl., ¶¶ 1-2; Code Civ Proc., § 430.41.)

**Legal Standard for Demurrer**

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39

Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc*. (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc*. (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

**Background**

Cross-Complainant and Cross-Defendant purchased property (the "Property") as co-owners. (Cross-Complaint, ¶¶ 6-12.) They were to split all costs and expenses evenly and eventually sell the Property and split the proceeds. (*Ibid*.) "In or around February 2022, Cross-Defendant failed to continue making payments for such agreed upon expenses . . . ." (*Id*., at ¶ 12.)

On May 1, 2025, Cross-Defendant filed an action in the Contra Costa Superior Court alleging eleven claims against Cross-Complainant, including: (1) quiet title; (2) fraud; (3) conversion; (4) breach of contract; (5) breach of the covenant of good faith and fair dealing; (6) intentional misrepresentation; (7) breach of fiduciary duty; (8) partition and sale of real property; (9) imposition of a constructive trust; (10); equitable estoppel; and (11) promissory estoppel. (Complaint, pp. 1-18.)

On July 21, 2025, Cross-Complainant filed a Cross-Complaint asserting five causes of action against Cross-Defendant, including: (1) declaratory relief; (2) intentional misrepresentation; (3) negligent misrepresentation; (4) fraud – suppression of fact; and (5) breach of contract. (Cross-Complaint, pp. 1-11.)

**Discussion**

Statute of Limitations - Second, Third and Fourth Causes of Action

Cross-Defendant argues that Cross-Complainant's second, third, and fourth causes of action based on fraud are time-barred. (Demurrer, p. 3; Reply, pp. 2-4.) Fraud (intentional misrepresentation), negligent misrepresentation, and fraud (suppression of fact) each have a three-year statute of limitation. (Code of Civ. Proc., §338, subd. (d).)

Cross-Defendant argues that due to Cross-Complainant's allegation in paragraph 46 of the Cross - Complaint that "Cross-Complainant is informed and believe and thereon allege that in or about December 2021, Cross-Defendant defrauded Cross-Complainant by failing to act in accord with Cross Defendant's rights, duties, and responsibilities under the Contract," shows that the cross-complaint should have been filed by December 2024, rather than July 2025. (Demurrer, p. 3:19-28.) The Court notes that this allegation at paragraph 46 only applies to the fourth cause of action (fraud-suppression of fact) because the intentional and negligent misrepresentation causes of action that are alleged at paragraphs 24 – 44, and incorporate all the prior paragraphs, but do not incorporate paragraph 46. (Cross-Complaint, pp. 5-8.)

Cross-Complainant, in their opposition, cites authority for the proposition that a cause of action does not accrue for statute of limitation purposes until the cause of action is complete with all of its elements. (Opposition, p. 5:12-22.) Cross-Complainant also argues that "[i]t is and remains Cross-Complainant's allegation that when the contract was entered into, Cross-Defendant Cauffield entered into the contract with a fraudulent purpose and without intent to honor his end of the bargain, thus when the fraudulent actions of Cross-Defendant happened. Assuming this to be true, Cross-Complainant did not learn of the fraudulent conduct until a few years later. It was this discovery that started the statute of limitation clock, not when the alleged fraud was committed." (Opposition, p. 6:7-12.) Cross-Defendant correctly points out in the Reply that although Cross-Complainant offers argument relating to delayed discovery in the opposition, this is not pled in the Cross-Complaint. (Reply, p. 3.)

"In order to rely on the discovery rule for delayed accrual of a cause of action, '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.' [Citation.] In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to 'show diligence'; 'conclusory allegations will not withstand demurrer.' " (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.) In *Fox*, the California Supreme Court further ruled that "under the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action." (*Id*. at 806.)

Here, Cross-Complainant alleges in paragraph 12 of the Cross-Complaint that "In or about February 2022, Cross-Defendant failed to continue making payments for such agreed upon expenses, thereby leaving Cross-Complainant to cover such costs by herself." This is the time that Plaintiff had reason to suspect an injury, especially as the fraud is alleged to be representations by Cross-Defendant "that expenses would be divided equally between the Parties," and "that Cross-Defendant had the financial stability to make such payment." (Cross-Complaint, ¶¶ 27-28, 38.) The suppression claim relies on an allegation that Cross-Defendant concealed his inability to cover his share of expenses. (*Id*., at ¶ 47.) Thus, by Cross-Defendant failing to pay his share in or around February 2022, Cross-Complainant had reason to suspect an injury at that point, and as those failures appear to have continued, it would not be long after that a wrongful cause should have been suspected.

"A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar … to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred." (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232 [same].) Sometimes, "a pleading of 'on or about' fails to provide the requisite certainty for resolution of the issue," when the dates alleged are close to the dates needed to state a claim. (*Childs v. Cal*. (1983) 144 Cal.App.3d 155, 160.) However, in *Boscus* v. *Waldmann* (1916) 31 Cal.App. 245, the court explained that "the phrase ‘on or about’ should be held to mean either the day mentioned or a day in very near proximity thereto.” (*Id*., at p. 258.)

Here, based on Cross-Complainant’s allegation of missed payments beginning “in or about February 2022” and the filing of the Cross-Complaint three years *and five months* later, the Court finds that the Cross-Complainant does not properly allege that the fraud-based claims are within the statute of limitations. The date alleged of February 2022, is not very close to July, so even if the “in or around” were to be March or April, the claims are still barred by the statute of limitation absent delayed discovery. The Court sustains with leave to amend Cross-Defendant’s demurrer to the second (intentional misrepresentation), third (negligent misrepresentation), and fourth (fraud – suppression of fact) causes of action for being barred by the statute of limitation.

Although Cross-Complainant argues at page 6 of the Opposition that they “did not learn of the fraudulent conduct until a few years later,” this is not alleged in the Cross-Complaint as required by *Fox*. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808 [“ ‘[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.’ ”].)

<u>Sufficiency of Fraud Allegations: Second, Third and Fourth Causes of Action</u>

*Third Cause of Action – Intentional Misrepresentation*

Cross-Defendant argues that Cross-Complainant’s fraud-based claims are not pleaded with the requisite particularity. (Demurrer, p. 4:11; Reply, pp. 4:25-5:26.) Cross-Complainant argues that their fraud claims are sufficiently pled, citing paragraphs 27-29, 30-32, 38-40, 41-43, 47, 48, 49, and 52-53, of the Cross-Complaint.

Generally, fraud must be pled with particularity. (*Hills Transportation Co. v. Southwest Forest Ind., Inc*. (1968) 266 Cal.App.2d 702, 707.) With regard to fraud claims, pleadings must allege facts as to “‘how, when, where, to whom, and by what means the representations were tendered.’” (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) The elements of negligent misrepresentation must be alleged with same level of particularity that is required to state a claim for intentional misrepresentation. (See *Small v. Fritz Companies, Inc*. (2003) 30 Cal.4th 167, 173–174.)

For the intentional misrepresentation claim, Cross-Complainant alleges “the how” as being the Cross-Defendant representing that he had the financial stability to be able to make the payments. (Cross-Complaint, ¶ 28.) The “when” is “at the time of entering into the contract. . .” (*Ibid*.) The to whom, is “to Cross-Complain[an]t. (*Ibid*.) The “means the representations were tendered” is not clear, however, as the Cross-Complaint only alleges that “Cross-Defendant made representations to Cross-Complain[an]t.” (*Ibid*.) This is ambiguous and insufficiently pleaded.

“To plead a cause of action for fraud, [one] must allege misrepresentation, knowledge of falsity, intent to defraud, justifiable reliance, and damage.” (*Tindell v. Murphy* (2018) 22 Cal.App.5th 1239, 1249.) With respect to these elements and this cause of action, the Court finds them sufficiently pled, apart from the insufficient particularity described above. (Cross-Complaint, ¶¶ 28-32.)

*Fourth Cause of Action – Negligent Misrepresentation*

Here, similar to above, Cross-Complainant has failed to plead the "means the representations were tendered," as the Cross-Complaint only alleges that "Cross-Defendant made representations to Cross-Complain[an]t." (Cross-Complaint, ¶ 38.)

"The elements of negligent misrepresentation are (1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another's reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage." (*Apollo Capital Fund LLC v. Roth Capital Partners, LLC* (2007) 158 Cal.App.4th 226, 243.) With respect to these elements and this cause of action, the Court finds them sufficiently pled. (Cross-Complaint, ¶¶ 38-43.)

Notably, the allegations from Cross-Complainant's intentional and negligent misrepresentation claims that the representations "induced" Cross-Complainant to enter into an agreement with Cross-Defendant, appear similar to promissory fraud or fraud in the inducement, although they are not so presented. (Cross-Complaint, ¶¶ 30, 39.)

*Third Cause of Action – Fraud – Suppression of Fact*

"A failure to disclose a fact can constitute actionable fraud or deceit in four circumstances: (1) when the defendant is the plaintiff's fiduciary; (2) *when the defendant has exclusive knowledge of material facts not known or reasonably accessible to the plaintiff*; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations that are misleading because some other material fact has not been disclosed." (*Collins v. eMachines, Inc*. (2011) 202 Cal.App.4th 249, 255, italics added.)

"[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 868.) With respect to these elements and this cause of action, the Court finds them sufficiently pled.

With respect to the requisite particularity for this cause of action, there was no "representation" here because this is a failure to disclose claim. Although the intentional and negligent misrepresentation claims were insufficiently pled with respect to the means the representations were tendered, that is not an issue for this cause of action, which does not involve a false representation.

Further on this claim, Cross-Defendant cites paragraph 46 of the Cross-Complaint and argues that a breach of contract alone, without more, does not amount to fraud. Paragraph 46 does appear to assert that a failure to perform under the contract is one basis for this fraud-related claim, but the next paragraph alleges this fraud is also based on Cross-Defendant concealing an inability to cover his share of expenses as well as the severity of his financial impairment. (Cross-Complaint, ¶ 47.) Thus, Cross-Defendant's argument is unavailing.

Leave to Amend

"If the plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment." (*State of California v. Superior Court* (1984) 150 Cal.App.3d 848, 863-864.) Here, the Court will provide Cross-Complainant with leave to amend because it cannot be said that the causes of action challenged are incapable of amendment.

**Ruling on the Demurrer**

For the reasons stated above, Cross-Defendant's demurrer to the second (fraud), third (negligent misrepresentation), and fourth (fraud-suppression of fact) causes of action, is SUSTAINED WITH LEAVE TO AMEND. Cross-Complainant may file and serve an amended cross-complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, Rule 3.1320(g).) A proposed form of order was lodged with the Court which the Court shall execute and enter.

**9. 9:00 AM CASE NUMBER: C25-02141**
**CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND**
***HEARING ON MOTION IN RE: COMPEL FURTHER VERIFIED RESPONSES CITY OF RICHMOND**
**FILED BY:**
****TENTATIVE RULING:****

Plaintiff Rassoul Malboubi ("Plaintiff") filed a Motion to Compel Further Verified Responses on October 30, 2025 (the "Motion to Compel Further Responses"). The Motion to Compel Further Responses was set for hearing on March 2, 2026. The motion is opposed.

Background

Plaintiff seeks further responses to discovery requests propounded on defendant City of Richmond (the "City"), including, it appears, form interrogatories and one or more sets of requests for production of documents. However, the precise discovery requests and responses at issue are unclear based on the papers filed, including because Plaintiff failed to file a Separate Statement pursuant to the requirements of Rule 3.1345 of the California Rules of Court ("CRC").

Analysis

As noted above, Plaintiff failed to file a Separate Statement in support of the Motion to Compel Further Responses. Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement, including a motion to compel further responses to interrogatories or a demand for inspection of documents. Rule 3.1345(a)(1)-(3); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) ("Rutter Civ. Pro.") § 8:602.5.

There are very specific requirements for the formatting and content of a Separate Statement. See CRC 3.1345(c) ("A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response."). Among other things, a proper Separate Statement must set forth the full text of both the request and response. Id. at (c)(1)-(2). Attaching a meet and confer email or other correspondence to a motion does not satisfy this requirement.

No Separate Statement in compliance with the requirements of CRC 3.1345 was ever filed by Plaintiff. For this reason alone, the motion is procedurally defective.

Even if not procedurally defective, the Court would deny the Motion to Compel Further Responses because Plaintiff failed to meet and confer in good faith—either in person, by telephone, or by videoconference—to resolve the discovery issues raised before filing this motion. See Declaration of Kevin D. Siegel filed February 18, 2026 ("Siegel Decl."), ¶¶3-10. Plaintiff is admonished for such failure to meet and confer in good faith before resorting to filing a discovery motion with the Court. See Code Civ. Proc. § 2016.040 ("A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion."). In any event, it appears substantial progress was made through later meet and confer discussions. *Id*. at ¶12 *et seq*.

<u>Sanctions</u>

The moving party persisted in prosecuting the Motion to Compel Further Responses without substantial justification based upon procedurally defective moving papers and without good faith compliance with the statutorily required meet and confer having been made.

The Court finds that the moving party's conduct constituted making a motion to compel discovery unsuccessfully and without substantial justification, pursuant to Code of Civil Procedure section 2023.010(h).

The Court further finds that the moving party's conduct constituted failing to confer or to attempt to confer, in person, by telephone, or by videoconference with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i). See Code Civ. Proc. §§ 2030.300(b)(1) (a motion to compel further responses to interrogatories must be accompanied by a meet and confer declaration under Section 2016.040) and 2031.310(b)(2) (a motion to compel further responses to document demand must be accompanied by a meet and confer declaration under Section 2016.040).

The Court finds that the foregoing conduct by the moving party constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions (the "Sanctions").

<u>Disposition</u>

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is DENIED.
2. The **PARTIES ARE ORDERED TO APPEAR** to set a hearing date and schedule for further briefing regarding determination of the amount of Sanctions. The Court reserves jurisdiction regarding the determination and imposition of such Sanctions. If the City waives the imposition of Sanctions, it may notify all parties and the Court. In such event, no appearance shall be required unless Plaintiff otherwise gives notice of contesting the Court's tentative ruling.
3. The Court shall issue the order after hearing.

**10. 9:00 AM CASE NUMBER: C25-02141**
**CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND**
***HEARING ON MOTION IN RE: FOR TRIAL PREFERENCE (CCP 36)**
**FILED BY:**
***<u>*TENTATIVE RULING:*</u>***

Before the Court is a motion by Plaintiff Rassoul Malboubi for trial preference. For the reasons set forth, the motion for trial preference is **DENIED, WITHOUT PREJUDICE** as set forth below.

**<u>Background</u>**

This action involves a dispute by plaintiff Rassoul Malboubi over decisions by the City of Richmond and Hector Lopez, at the time one of the City's senior planners in the planning department, concerning a duplex owned by plaintiff Rassoul Malboubi located on 24th Street in the City of Richmond. (First Am. Compl. ("FAC") ¶¶ 1-3.) The City has represented in prior pleadings that Mr. Lopez retired as a City planner on August 16, 2025. Plaintiff filed his FAC on February 2, 2026. For convenience, the Court refers to the City and Mr. Lopez collectively as the "City Defendants."

In his FAC, Mr. Malboubi alleges multiple causes of action against the City Defendants, including a petition for writ of mandate and declaratory relief, abuse of discretion, misapplication of the municipal code, failure to perform a mandatory duty, a separate cause of action for declaratory relief, and injunctive relief. Plaintiff has filed a motion for trial preference under Code of Civil Procedure section 36(a) based on his age and health conditions, or alternatively, for discretionary trial preference under Code of Civil Procedure section 36(e). Defendants oppose the motion.

**<u>Legal Standards for Ruling on Motion for Trial Preference</u>**

Code of Civil Procedure section 36(a) provides that if a party is over 70 years old, the party may request a trial preference "which the court shall grant if the court makes both of the following findings: [¶] (1) The party has a substantial interest in the action as a whole. [¶] (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." If the conditions of Code of Civil Procedure section 36(a) are met, granting a trial preference is <u>mandatory</u>. (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 533; *Miller v. Superior Court* (1990) 221 Cal.App.3d 1200, 1204; *Koch-Ash v. Superior Court* (1986) 180 Cal.App.3d 689, 692.) The cases recognize that Code of Civil Procedure section 36 "was enacted for the purpose of assuring that an aged or terminally ill plaintiff would be able to participate in the trial of his or her case and be able to realize redress upon the claim asserted." (*Looney v. Superior Court* (1993) 16 Cal.App.4th 521, 532.) (*See also Kline v. Superior Court* (1991) 227 Cal.App.3d 512, 515 [quoting *Rice v. Superior Court* (1982) 136 Cal.App.3d 81, 88-89 that based on the legislative history, " 'the purpose of subdivision (a) to safeguard litigants beyond a specified age against the legislatively acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover their just measure of damages or appropriate redress.' [Citation omitted.]"].)

"Mere inconvenience to the court or to other litigants is <u>irrelevant</u>. [Citation omitted.] Failure to complete discovery or other pretrial matters <u>does not affect</u> the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36. The trial court has <u>no power</u> to balance the differing interests of opposing litigants in applying the provision.

The express legislative mandate for trial preference is a substantive public policy concern which supersedes such considerations. [Citation omitted.]" (*Swaithes v. Superior Court* (1989) 212 Cal.App.3d 1082, 1085-1086 [emphasis added].)

Proof that preference is necessary under Code of Civil Procedure section 36(a) based on the health of the party is based on a preponderance of the evidence standard and does not require medical evidence from a physician. (*Fox, supra,* 21 Cal.App.5th at 533-534.) The testimony of the party or the party's counsel is sufficient to support a finding under the second prong of the two-prong test of Code of Civil Procedure § 36(a). (*Id.* at 534; Code Civ. Proc. § 36.5.) The party may submit an affidavit (or declaration) in support of the motion attesting to "the medical diagnosis and prognosis" of the party to support the motion for trial preference under Code of Civil Procedure section 36. (Code Civ. Proc. § 36.5.)

Proof of the party's potential death or disability in the next six months is also not required under Code of Civil Procedure section 36(a). (*Fox, supra,* 21 Cal.App.5th at 534 ["Section 36, subdivision (a), says nothing about 'death or incapacity.' . . .. The issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called. Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party's '*health* . . . is such that a preference is necessary *to prevent prejudicing [her] interest in the litigation*.' (Italics added.)"].)

Plaintiff has alternatively moved for a trial preference in the Court's discretion under Code of Civil Procedure section 36(e). That provision states: "Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference."

**"Responses" to Defendants' Opposition**

Mr. Malboubi filed a "Response" to the City Defendants' memorandum in opposition to the motion, and a separate "Response" to the declaration of Kevin Siegel filed in support of the City Defendants' opposition, a second memorandum with argument. Code of Civil Procedure section 1005(b) governing motions provides for a "reply" to an opposition. (*See also* Cal. R. Ct., Rule 3.1113(d) [referring to "reply or closing memorandum" on a motion].) The Court understands Mr. Malboubi's "Responses" are intended to be a "reply" but the Court admonishes Mr. Malboubi to use the terminology provided in the statute and rules in future filings.

A reply to an opposition is limited to 10 pages in length. (Cal. R. Ct., Rule 3.1113(d).) The two "Responses" collectively exceed the 10 page limit under the applicable rule. The Court will consider the two Responses, but the Court expects compliance by Mr. Malboubi with the applicable rules in future filings.

**Analysis**

Mr. Malboubi declares that he is 75 years old and that he has "hypertension controlled by medication and a coronary stent." (Malboubi Decl. ¶¶ 1, 2.) His declaration in support of his moving papers, which is dated October 13, 2025, referred to a doctor's note, which was not attached. Mr. Malboubi has supplied a doctor's note with his reply, a letter dated February 20, 2026 from Dr. Clifton Watt who states with regard to Mr. Malboubi's condition that (a) Mr. Malboubi is under the doctor's care for "cardiovascular-related medical concerns, including symptoms requiring diagnostic cardiac stress testing," (b) minimizing stress would be beneficial to his cardiac health," and (c) if Mr. Malboubi "is undergoing a legal matter," then the doctor hopes "that this can be resolved as promptly as reasonably possible." (Exh. A to Malboubi Resp.)

**A. Mandatory Trial Preference Under Code of Civil Procedure Section 36(a)**

Defendant opposes the motion and argues Plaintiff has not demonstrated that his age and physical condition warrant a trial preference. There is no dispute that Plaintiff is over 70 years old (he is 75) and meets the age threshold. (Code Civ. Proc. § 36(a).) He is the sole plaintiff, and there is also no dispute that based on his allegations in the FAC, he has a substantial interest in the action. (Code Civ. Proc. § 36(a)(1).)

What is disputed is whether Mr. Malboubi's evidence of his health condition meets the standard of the statute for mandatory trial preference "that a preference is necessary to prevent prejudicing the party's interest in the litigation." (Code Civ. Proc. § 36(a)(2) [emphasis added].) One of his medical conditions is hypertension which he acknowledges is "controlled by medication." The other condition is that he has a coronary stent. His doctor indicates only generally that Mr. Malboubi is "under [] care for cardiac-related medical concerns" and his "symptoms" require stress tests. (Exh. A to Malboubi Resp.) His doctor only suggests generically that "minimizing stress" would be beneficial to Mr. Malboubi's health. (Exh. A to Malboubi Resp.) The evidence does not show that a trial preference is "necessary" so that Mr. Malboubi's interest in the litigation will not be prejudiced, such as by Mr. Malboubi not being able to present or prosecute his claims through trial.

The Court finds that the evidence is insufficient to demonstrate granting Plaintiff a trial preference and setting trial within 120 days of the determination of this motion, roughly in early July 2026, is "necessary to prevent prejudicing [Plaintiff's] interest in the litigation" because of Plaintiff's health conditions as reflected in the evidence before the Court. (Code Civ. Proc. § 36(a).) (*Compare, e.g., to Fox, supra,* 21 Cal.App.5th at 532, 535 [evidence from plaintiff's counsel, medical records, and plaintiff's declaration that 81-year old plaintiff had Stage IV lung cancer, cancer had metastasized to her femur, clavicle, and spine, plaintiff also suffered from asbestosis, asbestos-related pleural disease, severe coronary artery disease, and anemia, and plaintiff was undergoing chemotherapy treatments that caused her severe physical and mental impairments, including confusion and forgetfulness and an inability to perform "basic life functions," such that there was a valid concern plaintiff would not be able to participate in the case much longer based on her deteriorating health].)

**B. Discretionary Trial Preference Under Code of Civil Procedure Section 36(e)**

The Court does not find a "balancing" or weighing of relative prejudice is permitted in determining a motion for mandatory trial preference under Code of Civil Procedure section 36(a) based on the language of the statute and the case law construing it; if the conditions of section 36(a)(1) and (2) are met, trial preference is mandatory. (*Fox, supra,* 21 Cal.App.5th at 533; *Miller, supra,* 221 Cal.App.3d at 1204; *Swaithes, supra,* 212 Cal.App.3d at 1085-1086.) Code of Civil Procedure section 36(e), which allows the Court in its discretion to grant trial preference, explicitly requires the Court to consider whether "the interests of justice will be served by granting this preference." (Code Civ. Proc. § 36(e).)

The Court has considered Plaintiff's evidence of his medical condition, his indicated intention to file a second amended complaint when the City's document production is complete (Resp. p. 5, ll. 11-15), the upcoming hearings on discovery, and that there is a case management conference set for June 9, 2026 after the pending discovery motions should be resolved. The Court takes into consideration Mr. Malboubi's evidence regarding "minimizing stress" by resolving the litigation as soon as "reasonably possible," but the Court does not find that the record on this motion shows that the interests of justice will be served in this case by granting the discretionary trial preference motion and setting a trial date for early July 2026.

**Conclusion, Ruling, and Notes on Upcoming Hearings and CMC**

For the reasons stated, the motion for mandatory or discretionary trial preference under Code of Civil Procedure sections 36(a) and 36(e) is **DENIED, WITHOUT PREJUDICE**. The Court denies the motion without prejudice to make it explicit that if there is a material change in circumstances and if additional facts arise, including evidence of a deterioration in Mr. Malboubi's health conditions, that make trial preference necessary to prevent prejudice to Plaintiff's interest in the case (Code Civ. Proc. § 36(a)), or that change the considerations regarding whether the interests of justice would be served by granting trial preference (Code Civ. Proc. § 36(e)), Plaintiff may renew the motion.

The case has been pending since July 31, 2025, approximately seven months. Despite the Court's ruling on the trial preference motion based on the evidence before it, the Court also does not intend to allow this litigation to be unduly delayed given the narrow scope of the claims, which generally involve whether Mr. Malboubi's Richmond property should be permitted to be converted to a condominium or subdivided into two lots, and if so, on what conditions. The Court's register of actions shows that there is a case management conference scheduled for June 9, 2026, which follows a series of hearings on pending discovery disputes based on discovery motions filed by Mr. Malboubi that are set between March 2, 2026 and May 4, 2026. At the upcoming CMC, the parties should be prepared to address the timing for closing discovery, the conduct of mediation or a settlement conference, and the setting of a trial date.

**11. 9:00 AM CASE NUMBER: C25-02273**
**CASE NAME: LINDA WILLIAMS VS. DOES 1-50**
**HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT**
**FILED BY: GROVE, JUDITH, RN**
***TENTATIVE RULING:****

Before the Court is a demurrer to plaintiff's first amended complaint by defendants San Ramon Regional Medical Center, Judith Grove, R.N., and Rene Ochoa, R.N. Also before the Court on this calendar are a motion to strike plaintiff's first amended complaint by defendants San Ramon Regional Medical Center, Judith Grove, R.N., and Rene Ochoa, R.N. and a joinder in the demurrer by defendant Dr. Joseph Toscano. For the reasons set forth, the Court **CONTINUES** the hearing on the demurrer, motion to strike and joinder to **9:00 a.m. on May 11, 2026**.

The Court further **ORDERS** that the hearings on the demurrers and motions to strike filed by other defendants challenging Plaintiff's first amended complaint, presently set for hearing on various dates from April 13, 2026 to June 8, 2026, to be **CONTINUED OR ADVANCED AND RESET** for hearing at **9:00**

**a.m. on May 11, 2026**, as set forth below.

The Court further **ORDERS** that counsel for defendants San Ramon Regional Medical Center, Tenet Healthcare Corporation, Judith Grove, R.N., and Rene Ochoa, R.N., file and serve written notice on all parties of this ruling and the change in hearing dates on all pending demurrers, motions to strike, and Dr. Toscano's joinder **by March 9, 2026**.

**<u>Continuance, Advancement, and Resetting of Hearings</u>**

The register of actions in this case reflects that multiple challenges to plaintiff's first amended complaint ("FAC") have been filed by other defendants in this action, in addition to those set for hearing on March 2, 2026. The following are the other pending challenges to the FAC, according to the Court's Odyssey system:

- Defendant Narendra Malani, M.D.'s demurrer to Plaintiff's FAC and motion to strike Plaintiff's FAC set for hearing on April 13, 2026;
- Defendant Dr. Joseph Toscano's demurrer to Plaintiff's FAC set for hearing on May 11, 2026;
- Defendant Tenet Healthcare Corporation's demurrer to Plaintiff's FAC set for hearing on May 18, 2026; and
- Defendant Tenet Healthcare Corporation's motion to strike Plaintiff's FAC originally set for hearing on June 1, 2026 and reset to June 8, 2026.

The Court finds it appropriate for all these challenges to the same pleading (Plaintiff's FAC) to be heard and determined concurrently on May 11, 2026. The Court therefore **CONTINUES** the hearings on the following matters to **9:00 a.m. on May 11, 2026**:

- Defendants San Ramon Regional Medical Center, Judith Grove, R.N., and Rene Ochoa, R.N.'s demurrer and motion to strike Plaintiff's FAC;
- Defendant Dr. Joseph Toscano's joinder in defendants San Ramon Regional Medical Center, Judith Grove, R.N., and Rene Ochoa, R.N.'s demurrer to Plaintiff's FAC; and
- Defendant Narendra Malani, M.D.'s demurrer to Plaintiff's FAC and motion to strike Plaintiff's FAC.

The Court therefore also **ADVANCES** and **RESETS** the hearings on the following matters to **9:00 a.m. on May 11, 2026**:

- Defendant Tenet Healthcare Corporation's demurrer to Plaintiff's FAC; and
- Defendant Tenet Healthcare Corporation's motion to strike Plaintiff's FAC.

Counsel for defendants San Ramon Regional Medical Center, Tenet Healthcare Corporation, Judith Grove, R.N., and Rene Ochoa, R.N. is directed to provide written notice to all parties as set forth above.

**12. 9:00 AM CASE NUMBER: C25-02273**
**CASE NAME: LINDA WILLIAMS VS. DOES 1-50**
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
**FILED BY: GROVE, JUDITH, RN**
****TENTATIVE RULING:****

See Line 11 above.

**13. 9:00 AM CASE NUMBER: C25-02273**
**CASE NAME: LINDA WILLIAMS VS. DOES 1-50**
**HEARING IN RE: DR. JOSEPH TOSCANO'S JOINDER IN DEMURRER TO FIRST AMENDED COMPLAINT BY SAN RAMON REGIONAL MEDICAL CENTER**
**FILED BY: TOSCANO, DR. JOSEPH**
****TENTATIVE RULING:****

See Line 11, above.

**14. 9:00 AM CASE NUMBER: MSC21-00144**
**CASE NAME: BROUWER VS GREGORY FUNDING**
***HEARING ON MOTION IN RE: REMOVE AND/OR CHANGE HER GUARDIAN AD LITEM PER ARBITRATOR'S ORDER**
**FILED BY: PARK BROUWER, HELEN**
****TENTATIVE RULING:****

Parties to appear per Order dated February 25, 2026.

**15. 9:00 AM CASE NUMBER: N25-2114**
**CASE NAME: CLAIM OF:ADIEN GUTIERREZ-BANEGASAIDEN GUTIERREZ-BANEGAS**
***HEARING ON MINOR'S COMPROMISE**
**FILED BY: GUTIERREZ, NICKO**
****TENTATIVE RULING:****

Claimant Aiden Gutierrez-Banegas, by and through the duly appointed guardian ad litem herein, Petitioner Nicko Gutierrez ("Petitioner") filed a Petition for Approval of Compromise of Claim on or about October 27, 2025 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq*. of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on March 2, 2026.

Analysis

The Minor's Compromise is unopposed. The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed forms of order [Order Approving Compromise of Claim (MC-351) and Order to Deposit Funds in Blocked Account (MC-355)] lodged with the moving papers.

*[FN1] Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 5.45 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor's compromise and concluding that a judge "may decide a petition to approve or disapprove a minor's compromise on an ex parte basis, in chambers"). In any event, no party has sought to appear to oppose the Minor's Compromise.

**Discovery Law & Motion**

**16. 9:01 AM CASE NUMBER: C24-02589**
**CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER**
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER, INC.; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF $3,398.86;**
**FILED BY: HOFFMAN, MICHAEL**
****TENTATIVE RULING:****

Continued to March 23, 2026, at 9:00 a.m in Dept. 34 pursuant to Order entered February 19, 2026.

**17. 9:01 AM CASE NUMBER: C24-02589**
**CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER**
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF $3,398.86**
**FILED BY: HOFFMAN, MICHAEL**
****TENTATIVE RULING:****

Continued to March 23, 2026, at 9:00 a.m in Dept. 34 pursuant to Order entered February 19, 2026.

**18. 9:01 AM CASE NUMBER: C24-02589**
**CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER**
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS TO RFPS (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER, INC.; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF $3,398.86;**
**FILED BY: HOFFMAN, MICHAEL**
****TENTATIVE RULING:****

Continued to March 23, 2026, at 9:00 a.m in Dept. 34 pursuant to Order entered February 19, 2026.

**Courtroom Clerk's session**

**19. 10:00 AM CASE NUMBER: C23-00155**
**CASE NAME: ANDRE VS. VAN DERMEER**
**JURY TRIAL**
**FILED BY:**
***TENTATIVE RULING:****

Continued to October 26, 2026, 10:00 am, in Department 34, pursuant to Order entered February 25, 2026.

**20. 10:00 AM CASE NUMBER: MSC18-01854**
**CASE NAME: CHIOK VS NUSHAKE ROOFING**
**JURY TRIAL**
**FILED BY:**
***TENTATIVE RULING:****

Vacated.

**Law & Motion**
**Add On**

**1. 9:00 AM CASE NUMBER: C22-00793**
**CASE NAME: NOBLE LEARNING ACADEMY VS. WALNUT CREEK PRESBYTERIAN CHURCH**
**HEARING ON SUMMARY MOTION BY WALNUT CREEK PRESBYTERIAN CHURCH**
**FILED BY:**
***TENTATIVE RULING:****

Defendant Walnut Creek Presbyterian Church’s renewed Motion for Summary Adjudication is **DENIED**.

**I. Background**

Noble Learning Academy (“NLA”) is a small nonprofit private school run by Cassondra and Mark Hull. Walnut Creek Presbyterian Church (“WCPC”) is a nonprofit church that owns a campus in Walnut Creek with classrooms and other facilities.

In early 2021, as NLA was transitioning from online instruction during COVID to in-person schooling, Cassondra contacted WCPC about leasing classroom space on the church campus for the 2021–2022 school year. WCPC, through its finance and operations director Shauna Reed, met with the Hulls on site and discussed available spaces and scheduling around other church uses. After follow-up communications, Reed emailed Cassondra on March 28, 2021 saying, essentially, that the arrangement was “a complete go.”

Based on that confirmation, NLA began preparing to operate at WCPC's campus for the coming school year. Those preparations included recruiting students, giving parents tours of the campus, and creating promotional materials listing WCPC's address as the school location. The parties also discussed putting the arrangement into a written lease. From April through June, Reed (and a coworker) repeatedly indicated that WCPC would draft and send a lease soon, and Reed reassured Cassondra not to worry, she was busy, and the lease was coming.

WCPC also told NLA that a Conditional Use Permit ("CUP") would be required for the school to operate at the property, and WCPC represented that it would handle obtaining the CUP from the City and would bring in a consultant to help expedite the process. NLA was not involved in the CUP process beyond assisting with measurements and other requested information, relying on WCPC to complete and submit the application.

In late June 2021, WCPC finally sent a draft lease. Before NLA could sign it, WCPC told the Hulls it would no longer lease the space to NLA. The Hulls claim they later learned that WCPC had been struggling with the CUP process and had not submitted the permit application to the City even as the school year approached.

The lawsuit followed. In the operative Second Amended Complaint ("SAC") plaintiffs asserted causes of action for (1) anticipatory breach of contract, (2) promissory estoppel, (3) intentional misrepresentation (4) negligent misrepresentation (subsequently eliminated by demurrer); (5) breach of contract; and (6) breach of the implied covenant of good faith and fair dealing. WCPC's position in this case is that no contract was formed, that plaintiffs could not reasonably rely on preliminary communications while expecting a formal signed lease, and that no actionable misrepresentations occurred. Plaintiffs take the position that Reed's email and WCPC's months of conduct and assurances induced them to stop searching for alternative locations for the NLA and to instead invest in preparations to use the WCPC space, and that WCPC's reversal and its handling of the CUP process caused them financial harm.

On November 20, 2024, WCPC filed a motion for summary judgment or for summary adjudication of issues. In that motion, WCPC argued that no enforceable contract was formed, that Plaintiffs' reliance on Ms. Reed's statements was unreasonable as a matter of law, and that no actionable misrepresentations were made. WCPC's briefing focused primarily on the absence of a signed lease, deposition testimony purportedly admitting that there was no binding agreement for a lease.

On June 3, 2025, the Court denied WCPC's motion. The Court concluded that material factual disputes existed regarding contract formation and whether Plaintiffs reliance on certain alleged representations was reasonable.

On July 31, 2025, WCPC filed this renewed motion for summary adjudication of the first, fifth and sixth causes of action arising in contract, and the third cause of action for fraud. WCPC states that its renewed motion "comes down to two issues: (1) does the statute of frauds bars Plaintiffs' breach of contract claim[s]; and (2) did WCPC had a duty to disclose the 'May 9 and CUP facts' for purposes of a fraudulent under the elements of fraudulent concealment?" (11/26/25 Reply Brief; see also, 7/31/25 Notice of Motion.)

On November 18, 2025, Plaintiffs filed an opposition to WCPC's motion on the grounds that the Court had already denied summary adjudication on the same core factual disputes in June 2025, and the current motion identifies no new facts, circumstances, or law that would justify reconsideration of the June 3 order. Plaintiffs also oppose the motion on the merits, asserting that WCPC's newly asserted arguments as to the sufficiency of their claims continue to depend on disputed facts.

**II. Summary Adjudication Standard**

The standard governing motions for summary judgment and summary adjudication is settled. "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id*. at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar*, *supra*, 25 Cal.4th at p. 850.)

**III. Judicial Notice**

Plaintiffs request judicial notice of the operative Second Amended Complaint and the Court's June 3, 2025 Order denying WCPC's Motion for Summary Judgment. Plaintiffs were not required to formally request judicial notice of documents in the Court's file, but the request is granted. (Evid. Code § 452(d).)

**IV. Evidentiary Matters**

The Court declines to rule on Plaintiffs Objections to Evidence on the ground that the objections are not material to the ruling on the motion. (Code Civ. Proc., §437c(q).)

WCPC's request to file supplemental evidence in support of the motion is denied. WCPC states the supplemental evidence is necessary to respond to Plaintiffs' evidence offered to show that a lease was formed on March 21, 2021. The proposed supplemental evidence is not relevant to any issue presented on this motion.

**V. The Propriety of Renewed Motion**

Plaintiffs argue this motion is improper because it targets the same causes of action addressed the prior motion, and WCPC could have raised a statute of limitations defense at that time. WCPC responds that Plaintiffs agreed that a renewed motion could be filed during a Case Management Conference before Judge Devine so they have waived any objection.

Code of Civil Procedure section 437c(a)(4) provides that a party cannot bring more than one summary judgment motion without leave of court, but that limitation expressly does not apply to summary adjudication motions. Code of Civil Procedure section 437c(f)(2) states that a party cannot move for summary judgment based on issues asserted in a prior summary adjudication motion that was denied, unless they show newly discovered facts, changed circumstances, or a change in law. Section 437c(f)(2) says nothing about restricting a successive summary adjudication motion itself. It only restricts using a denied summary adjudication issue as the basis for a later summary judgment motion unless the requirements for reconsideration in are met.

In the prior motion, WCPC sought summary adjudication of the contract claims on the ground that no contract was ever formed, and of the fraud claim on the ground that plaintiffs did not reasonably rely on any representation by Reed amounting to a promise to lease the property.

In the present motion, WCPC seeks summary adjudication of the contract claims on the ground that any oral lease is unenforceable under the statute of frauds, and of the fraud claim on the grounds that WCPC had no duty to disclose the facts underlying the claim, and that plaintiffs cannot establish materiality, justifiable reliance, or damages.

In *Patterson v. Sacramento City Unified School District* (2007) 155 Cal.App.4th 821, 827, the Court of Appeal found that a second motion for summary judgment could be heard because the two motions for summary judgment were not identical and involved different legal theories. A comparison of the arguments and material facts showed that the motion for summary judgment was not simply a "reformatted, condensed, and cosmetically repackaged" version of its first motion. (*Ibid*., citing *Bagley v. TRW, Inc.* (1999) 73 Cal.App.4th 1092, 1097.)

WCPC seeks summary adjudication of the same causes of action as the prior motion, but on different grounds. The motion is therefore procedurally proper without the need to show newly discovered facts, circumstances, or a change in law. The Court reaches the merits to the extent the issues are properly framed in the motion.

**VI. Analysis**

**A. Enforceability of the Lease Under the Statute of Frauds (Issue Nos. 1-3)**

Although WCPC's separate statement frames Issues 1, 2, and 3 solely as a contract formation question, WCPC's notice and memorandum of points and authorities separately assert that the alleged oral lease for the property is unenforceable under the statute of frauds.

WCPC argues the alleged oral lease is unenforceable under Civil Code section 1624(a)(1), which renders invalid agreements "not to be performed within a year from the making thereof." In support, WCPC cites *Wickson v. Monarch Cycle Mfg. Co.* (1900) 128 Cal. 156 for the proposition that an agreement for a lease to commence in the future is void where the period from making to completion exceeds twelve months. In *Wickson*, for example, the court held that an oral lease made on December 28, to commence January 1st for a term of one calendar year, was unenforceable because the period from the date the agreement was made to the date of expiration exceeded twelve months.

Applying that calculation here, the contract was allegedly formed on March 28, 2021 (PMF 5), and according to WCPC's UMF No. 3, NLA's lease was to run through the last Friday of May 2022, a period of approximately fourteen months from formation to completion.

WCPC's math is correct but the problem is it has invoked the wrong statutory provision. Civil Code section 1624(a)(3), and not subdivision (a)(1), is the provision that governs real property lease agreements. Section 1624(a)(3) requires a writing for "an agreement for the leasing for a longer period than one year, or for the sale of real property, or of an interest therein." Unlike subdivision (a)(1), which measures the period from contract formation to completion, subdivision (a)(3) asks whether the lease term itself is for a period longer than one year. (Civil Code section 1624(a)(3); *Bed, Bath & Beyond of La Jolla, Inc. v. La Jolla Village Square Venture Partners* (1997) 52 Cal. App. 4th 867, 877 [Civ. Code § 1624 (d), concerning agreements to lease real property for a term longer than one year, is a more specific provision than Civ. Code § 1624 (a), concerning agreements in general that cannot be performed within one year from the date of making, and Civ. Code, § 1624(d), controls over Civ. Code, § 1624, subd. (a), where the two provisions conflict].)

WCPC's Fact No. 3 asserts that the alleged lease ran from August 31, 2021 to the last Friday of May 2022, a period of approximately nine months, and well under the one-year threshold of section 1624(a)(3). WCPC does not meet its burden of establishing that the alleged lease agreement is barred by the statute of frauds as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

Summary adjudication of the contract causes of action based on WCPC's statute of frauds defense is therefore denied. The Court does not address whether the evidence might support the part performance exception to the statute of frauds, or an estoppel to assert the defense.

**B. Third Cause of Action for Fraudulent Concealment (Issue No. 4)**

WCPC seeks summary adjudication of plaintiffs' third cause of action for fraudulent concealment on the ground that plaintiffs were not damaged. WCPC supports this issue with a single undisputed material fact, which is that "Plaintiffs never paid any money to WCPC." (See UMF No. 8, citing to Ex. D, McIntosh Decl., ¶3.) WCPC's framing of the damages issue is incorrect as a matter of law. The fact that plaintiffs never paid rent to WCPC does not establish the absence of damages on the third cause of action. There is a triable issue of fact whether Plaintiffs sustained damages as the result of WCPC's actions. (See Plfs.' Add'l. Fact Nos. 6-74.)

WCPC did present other evidence in support of the motion that was not incorporated into its separate statement. However, "'[t]his is the Golden Rule of Summary Adjudication: if it is not set forth in the separate statement, it does not exist.'" (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337, superseded by statute on other grounds.)

As WCPC's separate statement cites only UMF No. 8, the court declines to address the additional arguments in WCPC's brief regarding the sufficiency of the fraudulent concealment claim, or the competing evidence of the parties.

**VII. Disposition**

Based on the foregoing, WCPC's motion for summary adjudication of issues is **DENIED**. The Court shall issue the order after hearing.

**2. 9:00 AM CASE NUMBER: C22-01746**
**CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III**
***HEARING ON MOTION IN RE: SEAL PORTIONS OF MOTION TO ENFORCE SETTLEMENT AGREEMENT**

**FILED BY: SEENO, ALBERT D., III**
***TENTATIVE RULING:***

The parties filed a series of motions to seal in connection with the pending cross-motions relating to enforcement of the parties' settlement agreement (Add-On LINE 3) (the "Cross-Motions"). Those include the following (collectively, the "Motions to Seal"):

1. Motion to Seal filed November 6, 2025;
2. Motion to Seal filed November 12, 2025;
3. Motion to Seal filed January 27, 2026; and
4. Motion to Seal filed February 2, 2026.

The motions are all unopposed. The Court previously reset all related Motions to Seal to the same hearing date as the underlying Cross-Motions. To the extent that any of the Motions to Seal may still have future hearing dates, the matters are advanced for hearing, in the Court's discretion, and such future dates are VACATED.

Background

The Motions to Seal seek to seal portions of the parties' pleadings in connection with the Cross-Motions (the "Portions to be Sealed"). See e.g. Declaration of Charmaine G. Yu filed January 27, 2026 ("Yu Decl."), ¶2. The subject pleadings were filed with the Portions to be Sealed redacted from the public filings.

Analysis

Under the California Rules of Court, "[u]nless confidentiality is required by law, court records are presumed to be open." Rule 2.550(c) of the California Rules of Court ("CRC"). Public access to civil proceedings serves to (i) demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings; (ii) provide a means by which citizens scrutinize and check the use and possible abuse of judicial power; and (iii) enhance the truthfinding function of the proceeding. *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1219.

CRC Rule 2.551(a) provides:

> A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.

See CRC Rule 2.551(a).

A court may order that a record be filed under seal only if it expressly finds facts that establish:

> (1) There exists an overriding interest that overcomes the right of public access to the record;
>
> (2) The overriding interest supports sealing the record;
>
> (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
>
> (4) The proposed sealing is narrowly tailored; and

(5) No less restrictive means exist to achieve the overriding interest.

See CRC Rule 2.550(d)(1)-(5).

The law favors maximum public access to judicial proceedings and court records. *Alfaro v. Superior Court* (2020) 58 Cal.App.5th 371, 386, quoting *Pantos v. City and County of San Francisco* (1984) 151 Cal.App.3d 258, 262-63. "Judicial records are historically and presumptively open to the public and there is an important right of access which should not be closed except for **compelling** countervailing reasons." *Id*. (emphasis added).

The unredacted versions of all pleadings were lodged for the Court's review. The redacted portions and materials are represented to include private, non-public financial information related to a disputed debt, the inner financial workings and operations of a group of family owned businesses, and confidential employment and compensation information. See e.g. Yu Decl., ¶3. The Portions to be Sealed appear narrowly tailored.

The supporting declarations describe that the moving parties only seek to seal certain very specific portions of the subject pleadings. See e.g. Yu Decl., ¶2. For example, in the Declaration of Albert D. Seeno III in Support of Opposition to Albert D. Seeno Jr.'s Counter-Motion to Enforce Settlement Agreement filed January 27, 2026, a redaction appears at line 17. In the Opposition to Albert D. Seeno JR.'S Counter-Motion to Enforce Settlement Agreement filed January 27, 2026, contains targeted and narrowly tailored redactions throughout the document.

Accordingly, the Court finds that there exists an overriding interest that overcomes the right of public access to the specific Portions to be Sealed. The Court further finds that this overriding interest supports sealing the Portions to be Sealed and there exists a substantial probability that the overriding interest will be prejudiced if the Portions to be Sealed are not sealed. Subject to resolution of the issue discussed below, the Court further finds that the Portions to be Sealed are narrowly tailored and that there is no less restrictive means exist to achieve the overriding interest.

Disposition

The Court finds and orders as follows:

1. The Motions to Seal are GRANTED.
2. The Court shall issue the order after hearing.

**3. 9:00 AM CASE NUMBER: C22-01746**
**CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III**
***HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 664.6**
**FILED BY: SEENO, ALBERT D., III**
****TENTATIVE RULING:****

Before the Court is Defendant and Cross-Complainant Albert D. Seeno III's and related entities' ("Mr. Seeno-III") motion to enforce settlement agreement pursuant to Code of Civil Procedure section

646.6. Plaintiff and Cross-Defendant Albert D. Seeno, Jr. and related entities ("Mr. Seeno-Jr") oppose the motion and bring a counter motion to enforce settlement agreement. For the following reasons, both motions are **DENIED**.

Legal Standard

Code of Civil Procedure section 664.6 "provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement. [Citation.] [It] states that if the parties to pending litigation enter into a settlement either in a writing signed by the parties or orally before the court, the court, upon a motion, may enter judgment pursuant to the terms of the settlement. The court retains jurisdiction to enforce a settlement under the statute even after a dismissal, but only if the parties requested such a retention of jurisdiction before the dismissal." (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182, fn. omitted.) Before section 664.6 was enacted, if one party to a settlement agreement failed to perform one of its obligations, the party seeking to enforce the agreement often had to file a separate lawsuit for breach of the settlement agreement. Section 664.6 offers a more efficient alternative procedure for resolution of disputes that arise over settlement agreements.

Although a judge hearing a Section 664.6 motion "may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment," the judge is not authorized to "create the material terms of a settlement[.]" (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 810.) If there is no evidence establishing a manifestation of assent to the 'same thing' by both parties, then there is no mutual consent to contract and no contract formation." (*Id.* at pp. 810–811; *accord*, *Bustamante v. Intuit, Inc*. (2006) 141 Cal.App.4th 199, 208–209.) "Where the existence of a contract is at issue and the evidence is conflicting or admits of more than one inference, it is for the trier of fact to determine whether the contract actually existed." (*Bustamante v. Intuit, Inc*., *supra*, at p. 208.)

Analysis

"The case law uniformly treats a settlement agreement as a contract subject to all the normal legal and statutory contractual requirements." (*Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) A settlement agreement is "therefore governed by the same legal principles applicable to contracts generally." (*In re Marriage of Hasso* (1991) 229 Cal. App. 3d 1174, 1180.)

A breach of contract requires: (1) the existence of the contract, (2) the plaintiff's performance or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damages to the plaintiff. (See *Reichert v. General Ins. Co.* (1968) 68 Cal.2d 822, 830.)

The Court has reviewed the operative portion of the settlement agreement as to which Mr. Seeno-III seeks partial judgment. (See Settlement Agreement, ¶4, Declaration of Charmaine G. Yu filed November 6, 2025, Exhibit B.)

The first sentence of Paragraph 4 of the Settlement Agreement addresses the assignment of certain stock at issue in the PCI Trust Case to Mr. Seeno-Jr (the "Subject Stock"). However, it is apparent that no such assignment of the Subject Stock has occurred as yet. At least no party asserts that it has.

It is also plain that such assignment is a condition precedent to the entitlement to the distribution described in the second sentence of Paragraph 4.

In the absence of the assignment under the first sentence, there is no breach of the second sentence. Whatever the hold-up may or may not be, there has been no showing that the assignment has occurred, and that Mr. Seeno-Jr has failed to perform his obligations under the second sentence notwithstanding the assignment having been done.

Indeed, the Court finds that Mr. Seeno-III's motion is not ripe for adjudication. He cannot purport to complain about the scope of the distribution where he has not satisfied the precondition to such distribution. "The ripeness requirement, a branch of the doctrine of justiciability, prevents courts from issuing purely advisory opinions. [Citation.] It is rooted in the fundamental concept that the proper role of the judiciary does not extend to the resolution of abstract differences of legal opinion." (*Pacific Legal Foundation v. California Coastal Com.* (1982) 33 Cal.3d 158, 170.)

As to Mr. Seeno-Jr's cross-motion, the Court is not persuaded that Mr. Seeno-Jr's interpretation is correct or that Mr. Seeno-Jr has demonstrated any basis for the relief sought. However, that controversy, if it may exist, is not ripe as described above.

In light of the above, both motions are **DENIED**. The Court admonishes all parties and their counsel that the time and effort put into these cross-motions could have more effectively been brought to bear on effectuating the settlement terms and concluding the myriad matters that the settlement was intended to end.

The Court issue shall the order after hearing.

**4. 9:00 AM CASE NUMBER: C22-01746**
**CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III**
***HEARING ON MOTION IN RE: TO SEAL**
**FILED BY: SEENO, JR., ALBERT D.**
***<u>*TENTATIVE RULING:*</u>***

See Add-On LINE 2, above.

**5. 9:00 AM CASE NUMBER: C22-01746**
**CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III**
***HEARING ON MOTION IN RE: TO SEAL**
**FILED BY: SEENO, ALBERT D., III**
***<u>*TENTATIVE RULING:*</u>***

See Add-On LINE 2, above.

**6. 9:00 AM CASE NUMBER: C22-01746**
**CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III**
***HEARING ON MOTION IN RE: TO SEAL**
**FILED BY: SEENO, JR., ALBERT D.**
****TENTATIVE RULING:****

See Add-On LINE 2, above.

**7. 9:00 AM CASE NUMBER: C23-00636**
**CASE NAME: LVNV FUNDING LLC VS. MARK WALKER**
**HEARING IN RE: JOINDER TO MOTION TO TRANSFER AND CONSOLIDATE RELATED ACTIONS**
**FILED BY: MANDARICH LAW GROUP, LLP**
****TENTATIVE RULING:****

See LINE 2, above.